

Shyam Sunder Luthara v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 27 March 2017 · WRIT - C No. 12664 of 2017 · **Writ not pressed; liberty to CGRF/Ombudsman under clause 7.10**

HEADNOTE

Writ-C by a consumer against the State of U.P. and others was not pressed. The High Court disposed of the petition as not pressed and granted the liberty sought, namely to approach the Consumer Grievance Redressal Forum and the Ombudsman under clause 7.10 of the Electricity Supply Code, 2005. Merits of the supply dispute were not examined.

FACTUAL SUMMARY

Shyam Sunder Luthara filed Writ-C No. 12664 of 2017 in the Allahabad High Court against the State of Uttar Pradesh and three others. The petition was listed before a Division Bench in the Chief Justice's Court. Counsel did not press the writ on the merits of the underlying electricity dispute, which the order does not narrate, and instead asked that the petitioner be left free to take the grievance to the Consumer Grievance Redressal Forum and the Ombudsman under clause 7.10 of the Electricity Supply Code, 2005.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10

liberty to CGRF and Ombudsman on not-pressed writ

HOLDING

Where the petitioner does not press a writ and seeks liberty to approach the Consumer Grievance Redressal Forum and the Ombudsman under clause 7.10 of the Electricity Supply Code, 2005, the High Court may dispose of the petition as not pressed and grant that liberty without deciding the merits of the supply dispute. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE UNDERLYING ELECTRICITY/SUPPLY GRIEVANCE

Petition not pressed; no facts of the dispute recorded. ¶ 1